

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502298	LILES VS SILENT VALLEY CLUB, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: “A defendant moving for summary judgment has the burden of showing that a cause of action lacks merit because one or more elements of the cause of action cannot be established or there is a complete defense to that cause of action.” (*Jones v. Wachovia Bank* (2014) 230 Cal.App.4th 935, 945; Code Civ. Proc., §437c, subd. (p)(2).) “A cause of action ‘cannot be established’ if the undisputed facts presented by defendant prove the contrary of plaintiff’s allegations as a matter of law.” (*Brantly v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Only when defendant meets this burden, “the burden shifts to the plaintiff... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., §437c(p)(2).)

“A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., §437c(f)(2).) “A party may seek summary adjudication as to one or more causes of action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages...or that one or more defendants owed or did not owe a duty to plaintiff....” (Code Civ. Proc., §437c(f)(1); *Maria D. v. Westec Residential Sec., Inc.* (2000) 85 Cal.App.4th 125, 133.) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (*Ibid.*)

I. Motion for summary judgment is granted.

The motion for summary judgment is granted. Summary judgment is granted only if the moving parties show that “there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c(c).) As further discussed herein, because Defendant prevails on every cause of action, the entire action should be fully disposed on summary judgment.

a. Motion for summary adjudication should be granted in part and denied in part.

i. First cause of action: Discrimination on the basis of sexual orientation, sex, gender, and gender expression/stereotype.

FEHA prohibits employers from discriminating against a person or discharge the person from employment on the basis of various enumerated characteristics, including

“gender identity, gender expression, age, sexual orientation...” (Gov. Code, §12940(a).) On a motion for summary judgment in employment discrimination cases, the initial burden rests with the employer to show that no unlawful discrimination occurred either by (1) negating the element of Plaintiff’s prima facie case, or (2) showing that a legitimate nondiscriminatory reason for the adverse employment action existed. (*Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 926.) Here, Defendant makes the showing sufficient to meet its burden.

Defendant moves for summary judgment on the ground that Plaintiff’s first cause of action lacks merit as Plaintiff cannot establish a prime facie showing as to this cause of action. To state a prima facie case of employment discrimination in violation of the FEHA, the plaintiff must establish the following: ‘ “(1) the employee’s membership in a classification protected by the statute; (2) discriminatory animus on the part of the employer toward members of that classification; (3) an action by the employer adverse to the employee’s interests; (4) a causal link between the discriminatory animus and the adverse action; (5) damages to the employee; and (6) a causal link between the adverse action and the damage. ’[Citation.]” (*McCaskey v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 979.)

Defendant presents evidence negating the causation element of the cause of action - that Plaintiff was not terminated “because of” Plaintiff’s membership in a protected class. As demonstrated by Defendant, Plaintiff testified at her deposition that she did not witness any direct outward signs of discrimination against her based on her sexual orientation. (Defendant’s Separate Statement of Undisputed Material Facts [“UMF”] 27.) Plaintiff was unable to cite any reason beyond her own subjective feeling that Slocum’s alleged mistreatment of Plaintiff was based on her sexual orientation. (UMF 28.) She also testified that Slocum did not ever say anything to her that led her to believe her alleged mistreatment of Plaintiff was related to her sexual orientation. (UMF 29.) Plaintiff also testified that she did not ever disclose her sexual orientation either to Slocum or Camacho at any time. (UMF 30-31.) Also, Defendant demonstrates that, David Langhofer, who was a board member of Defendant during Plaintiff’s employment, testified at his deposition that complaints submitted by Plaintiff about her employment, as shown to him, did not make any reference to her sexual orientation. (UMF 53.)

Defendant anticipates that Plaintiff will point to a comment she heard from her former supervisor, Sherry Nosam, who allegedly overheard Slocum and Camacho refer to Plaintiff as “that.” Defendant asserts that Plaintiff’s claim of discrimination cannot be based Nosam’s comment. In support of its assertions, Defendant points out that Nosam testified at her deposition admitting that she could not verify whether the alleged comment she overheard related to Plaintiff. Nosam testified that she heard Slocum and Camacho stating, “we do not need ‘that ’in the store,” but she had no understanding of the context of the conversation during which the comment was made. (UMF 62, 63.) Nosam admitted that the alleged comment could have related to something or somebody else. (UMF 65.)

The foregoing evidence presented by Defendant shows Plaintiff cannot establish at least one of the essential elements of her claim. A causal link between the adverse employment decision by the employer and Plaintiff’s protected classification cannot be

established when the protected classification is not known to the employer. As such, the plaintiff cannot prove discrimination under FEHA without proving the employer (by way of the Park Director, Cindy Slocum) had knowledge of the protected classification when the adverse decision was made, or cite to any evidence, beyond Plaintiff's own subjective belief, that Slocum's animus towards her, if any, were based on Plaintiff's protected status. (See *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1008 ["plaintiff must prove the employer had knowledge of the employee's disability when the adverse employment decision was made"].)

The same evidence set forth above also demonstrates a lack of an illegitimate motive on the part of Defendant. In a motion for summary judgment, an employer can show no unlawful employment action occurred by showing that a legitimate nondiscriminatory reason for the adverse employment action existed. The employer's discriminatory motive is also an element of the cause of action for discrimination in violation of the FEHA subject to the three-part burden shifting test articulated in the U.S. Supreme Court case of *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792; See *Morgan Regents of University of California* (2000) 88 Cal.App.4th 52, 68.) Under this burden-shifting test, the employer must first show that there was a legitimate nondiscriminatory reason for its decision to terminate the employee. (*Cornell v. Berkeley Tennis Club*, *supra*, 18 Cal.App.5th at 926.) Here, where evidence points to the fact that the employer was without knowledge of Plaintiff's protected classification, it raises an inference that Defendant's decision to terminate could not have been for a discriminatory reason based on an unknown protected classification. Moreover, Defendant presents a copy of a written complaint Plaintiff had filed with Defendant about Cindy Slocum. The complaint indicated that Plaintiff believed Slocum was micromanaging, retaliating against her, and that Slocum's behavior towards Plaintiff was creating a hostile environment for Plaintiff. Even if Plaintiff's subjective beliefs were true, the complaint indicates nothing regarding Plaintiff's status as a gay woman. In fact, Plaintiff admitted in her complaint that she took days off without permission and did not feel that she need to follow instructions from Slocum in handling her work duties. Plaintiff complained that she should be entitled to control her own schedule and demanding that she should be able to work overtime, work on her day-off, and should have discretion over the purchase orders without Slocum's objections. (Declaration of Beth Hunter ["Hunter Decl."], ¶ 11, Ex. M [July 30, 2024 written complaint]².) The content of the complaint suggests that Plaintiff's basis for the alleged retaliation and harassment was Slocum's not letting Plaintiff do her job as she saw fit.

Once the burden shifted, Plaintiff fails to present controverting evidence to raise a triable issue of fact as to the element of causation. Plaintiff's separate statement filed in response to Defendant's UMF indicates that the facts supporting Defendant's arguments are disputed. However, Plaintiff provides no controverting evidence. Instead, Plaintiff merely argues that the deposition testimonies relied on by Defendant

² Plaintiff objected to the Hunter Declaration for lack of foundation and personal knowledge to establish authentication of Defendant's business records. Although the objection should be sustained, Plaintiff has also submitted the July 30, 2025 written complaint as an exhibit to her own declaration submitted in support of her opposition. Hence, Defendant's motion may still rely on the July 30, 2024 written complaint as evidence. (See *Villa v. McFerren* (1995) 35 Cal.App.4th 733, 749 [evidence presented by plaintiff in opposition may cure evidentiary gaps in the moving paper].)

do not constitute material facts. The only evidence submitted in support of Plaintiff's dispute is her own declaration stating that she had a good faith belief that the conduct of which she complained was illegal sexual orientation discrimination. (See Declaration of Robin Liles ["Liles Decl."], ¶ 4.) Nevertheless, Plaintiff's subject belief does not raise a triable issue as to causation. As the court noted in *Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992: " "Although an employee's evidence submitted in opposition to an employer's motion for summary judgment is construed liberally, it "remains subject to careful scrutiny." [Citation.] The employee's "subjective beliefs in an employment discrimination case do not create a genuine issue of fact; nor do uncorroborated and self-serving declarations." [Citation.] "[Citation.]" (*Id.* at 1007-1008.)

For the foregoing reasons, the first cause of action is subject to summary adjudication. Defendant has demonstrated Plaintiff cannot establish at least one essential element of her cause of action, and Plaintiff has failed to raise a triable issue as to that element. Therefore, Defendant is entitled to summary adjudication as a matter of law.

ii. Second cause of action - retaliation under the FEHA

Defendant also prevails on the second cause of action. In California, retaliation by employer is prohibited under the FEHA, which prohibits an employer to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under the Act. (Gov. Code, §12940(f).) FEHA protect employees who file a complaint, testify, assist or participate in any manner in proceedings or hearings under the statutes; or oppose acts made unlawful by this statute. (Gov. Code, §12940(h).) To establish a prima facie case for retaliation, plaintiff must show that: (1) plaintiff engaged in a protected activity; (2) the employer subjected plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the employer's action. (*Yanowitz v. L'Oreal USA, Inc.*, *supra*, 36 Cal.4th at 1044.)

Here, Defendant argues that Plaintiff did not engage in a protected activity, which is an essential element of the cause of action for FEHA retaliation (Gov. Code, § 12940(h)). Defendant argues that Plaintiff did not engage in any protected activity when she submitted complaints about Slocum to Defendant's human resource department because the complaints did not relate to any practices that were reasonably believed unlawful under FEHA, such as discrimination or harassment based on the fact Plaintiff was a gay woman. In support of its contention, Defendant relies on written statements which Defendant contends are business records. Defendant submits a copy of an unsigned written statement purportedly prepared by its employee Tracy Camacho on July 17, 2024, which detailed the verbal complaint made by Plaintiff to her the prior day, on July 16, 2024. This July 17, 2024, statement by Camacho is attached as Exhibit L to the declaration of Beth Hunter, who states that she is the current Board President of Defendant and currently serving as the interim Head of Human Resources. (Declaration of Beth Hunter ["Hunter Decl."], ¶ 2.) The written statement contained Camacho's accounts of Plaintiff's complaint about Slocum taking away staff scheduling task from Plaintiff and creating her own work schedules for the store staff. (UMF 20.) It further notes that Plaintiff complained that she believed she was working in a hostile

workplace where Slocum was setting her up for failure and would not listen to her concerns. (UMF 21.) Defendant also relies on an unsigned written statement purportedly prepared by Plaintiff on July 30, 2024, following up on the earlier verbal complaints made to Camacho and reasserting her interpersonal issues with Slocum, complaining that she was frustrated working with Slocum on matters of staff scheduling, hiring personnel for the store, and alleged Slocum was micromanaging Plaintiff regarding approval of purchase orders. (UMF 24.) Defendant argues that the records do not indicate that at any time Plaintiff complained to Camacho or other manager-level employee of Defendant that she believed she was being discriminated against because of her sexual orientation or identity as a gay woman. (UMF 23.)

Here, Defendant meets its initial burden by demonstrating that Plaintiff cannot establish that she engaged in a protected activity. Once the burden shifted, Plaintiff fails to raise a triable issue as to this element. Plaintiff first objects to the Hunter declaration, and the related exhibits, on the grounds that Hunter lacks personal knowledge and that any statements made in the declaration to establish her capacity as custodian of record of Defendant is untrue as Hunter later testified at her deposition that she has no way of knowing how the records were prepared and maintained in the ordinary course of Defendant's business. (See Plaintiff's Evidentiary Objections.) The objections are sustained. However, Plaintiff's July 30th written complaint is also attached as an exhibit to Plaintiff's declaration (Liles Decl., Ex. 1) submitted in support of her opposition, which corroborates Defendant's assertion that Plaintiff did not reference or cite her sexual orientation as the basis for the alleged mistreatment or hostile work environment by Slocum. (See *Villa v. McFerren* (1995) 35 Cal.App.4th 733, 749 [evidence presented by plaintiff in opposition may cure evidentiary gaps in the moving paper].)

Plaintiff asserts that a triable issue of act exists as to whether her complaints constitute protected activity. Plaintiff submits her own declaration stating that she was subject to hostile environment and undue stress from Slocum's micromanagement and had a good faith belief that the conduct she complained of was directed to her because of her sexual orientation. (Liles Decl., ¶ 4, Ex. 1.) It is true that a plaintiff may prevail in the retaliation if she reasonably and good faith believed that what she was opposing constituted unlawful employer conduct such discrimination or harassment. (*Miller v. Department of Corrections* (2005) 36 Cal.4th 446, 474.) However, to be protected, an employee's actions must oppose activity the employee reasonably believes is prohibited employment practice under the FEHA such as discrimination. (*Dinslage v. City and County of San Francisco* (2016) 5 Cal.App.5th 368, 383.) It is undisputed that Plaintiff made no mention of her protected status in her written complaint and admits to having no evidence that the fact of her sexual orientation was ever mentioned to Defendant or its management-level employees. Any complaint regarding her what she believed to be hostile work environment, harassment and micromanaging based on scheduling and interpersonal conflicts cannot reasonably be believed as activity prohibited by FEHA and does not amount to protected activity.

For the foregoing reason, the second cause of action for retaliation in violation of FEHA is subject to summary adjudication.

iii. Third cause of action - failure to prevent/remedy discrimination and/or retaliation in violation of the FEHA

Here, because Defendant demonstrates that Plaintiff's discrimination retaliation claims have no merits, Plaintiff also cannot prevail on his claim that Defendant failed to prevent or investigate and remedy the discrimination and retaliation where no triable issues of facts exist as to any viable discrimination or retaliation claim. Therefore, summary adjudication of this cause of action is proper.

iv. Fourth cause of action – whistleblower retaliation (Lab. Code, § 1102.5(b))

To establish a prima facie case of retaliation a plaintiff must show: “(1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action; and (3) a causal link between the two.” (*Akers v. County of San Diego* (2002) 95 Cal.App.4th 1441, 1453.) The retaliatory motive, can be “proved by showing that that he employer was aware of the protected activities, that the employee engaged in protected activities, and that the adverse action following within a relatively short time thereafter.” (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69.)

Here, Plaintiff's fourth cause of action under the whistleblower retaliation statute (Lab. Code, § 1102.5(b)) also fails for the reason that Plaintiff cannot establish the critical element that she engaged in a protected activity by disclosing information about a prohibited conduct. Labor Code section 1102.5, subdivision (b), provides that an employer may not “retaliate against an employee for disclosing information ... to [1] a government or law enforcement agency, [2] to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance ... if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute....” (Lab. Code, §1102.5(b).) Here, as set forth above, Plaintiff's complaint to Defendant's management did not disclose any information suggesting that Slocum's treatment of Plaintiff was unlawful or in violation of any law. As such, the fourth cause of action is subject to summary adjudication.

For the foregoing reasons, Defendant's motion for summary judgment is granted.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2503225	PEREZ VS MERCURY INSURANCE COMPANY	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendant' 'unopposed Request for Judicial Notice of the Court's 2/25/26 Minute Order (RJN Ex. "D".)